



File No.: EXP202405912

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 28, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against SARARTE, S.L. (hereinafter, SARARTE), through the agreement transcribed below:

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File No.: EXP202405912

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On March 21, 2024, a complaint was filed with the Spanish Agency for Data Protection. The complaint is directed against SARARTE, S.L. with NIF B70223599 (hereinafter, SARARTE). The reasons on which the complaint is based are as follows:

The complainant states that the company SARARTE provided her personal data, including her personal mobile phone number, to 18 people without having previously requested her consent. The complainant claims to have become aware on March 12, 2024, when her personal mobile phone was overwhelmed, and the only call she managed to answer was from a person who indicated that SARARTE had provided her data. When contacted by email, SARARTE acknowledged having provided her data, arguing that they understood it to be the phone she would use for her work tasks at the company.

In the email sent by the complainant to SARARTE, dated March 12, 2024, it states:

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“Who did you ask for permission to send my personal phone number in an email to the 18 people on the team that I am not even copied on?”

In the response email sent by SARARTE on the same date, it expressly states the following:

“We understand that this is the phone you are going to use, as you have not provided us with another for this purpose. Since you have not communicated with them since Friday when I sent you the list and I cannot speak with you to inform you of how the actions are going and the girls are worried because I told them you would call, we have found ourselves obliged...”.

In a subsequent email, which also responds to a new protest email from the complainant, the company apologizes and indicates that this is not the way the company usually operates, but they had been unable to contact her by email and needed her to communicate with the people to whom they had provided her phone number.

The complainant attaches as evidence the exchange of emails with the company. The text of this email is as follows:

“First of all, I apologize, as this is not the procedure of the company, but I had sent you the staff list on Friday (as soon as it was accredited to us by the town hall) and by Tuesday, you had not contacted them to finalize locations and schedule a meeting, without having heard from you.”

Furthermore, the complainant claims to have continued receiving calls and WhatsApp messages in the following days despite having stated that she did not consent to the use of her personal phone for work-related matters. No evidence is provided regarding this point.

Finally, she claims that the company has created an email address using her phone number and

personal email as a recovery account without consent. In this regard, she attaches a Google email dated March 7, 2024, in which she is informed that the email account ***EMAIL.1 wants to use her email address as its recovery address.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to SARARTE, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), through the Single Enabled Electronic Address (DEHÚ), with SARARTE having accessed the content of the notification on May 9, 2024, as recorded in the certificate in the file.

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On June 11, 2024, a response letter from SARARTE was received by this Agency, in which it states that it was awarded a public contract from the Valencia City Council for "Information, awareness, prevention, care, and training services regarding sexual violence in the city of Valencia," for which it contracted the claimant, who was to be responsible for coordinating certain resources of the project, although no further details about this relationship or the signed contract are provided.

In relation to these tasks, SARARTE indicates that when it hires a person, it sends a standardized document regarding the processing of their data as a worker, which includes checkboxes to indicate whether they consent to their personal data being transferred to third parties:

- “() I consent to my personal data being included in the file maintained for management purposes and transfer to Public Bodies in compliance with labor, Social Security, and Tax regulations.”

- “() I consent to my personal data being transferred by SARARTE to the entities that provide services to it.”

According to SARARTE, when the hired person does not express their consent, the company provides them with email, phone, or the means required by the project they coordinate for communications they need to carry out as part of their employment relationship. It attaches several examples of this form signed by employees of the company.

In the present case, however, it would have mistakenly used the claimant's phone without having expressly consented, as the mentioned form was not filled out by the claimant. SARARTE also indicates that following this incident, it has reviewed its security policy and introduced a double-check regarding consent.

On the other hand, SARARTE asserts that the claimant submitted their resignation from the company on the same day, March 12, 2024, so in the following days, they were no longer part of the company, and their colleagues had a new coordinator, and their phone had not been provided to third parties, so the claimant would not have received any more calls for this reason, although no evidence is provided in this regard.

In its response, however, it does provide a copy of a burofax sent by the claimant to SARARTE on March 14, 2024, through which they submit a voluntary resignation communication, dated the previous day. In this communication, the claimant refers to an email sent on March 12 informing about their decision to terminate the employment relationship. This email has not been submitted to the proceedings.

Regarding the creation of the email account ***EMAIL.1, SARARTE states that it was the claimant who created it unilaterally, arguing that SARARTE uses its own domain for this type of service:

***DOMINIO.1.

THIRD: On June 21, 2024, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

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FOURTH: According to the report collected from the AXESOR tool, the entity SARARTE, S.L. is a company established in 2009, with a business volume of (...) euros in 2023.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached under Article 6.1 of the GDPR

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful in the following terms:

Article 6. Lawfulness of processing

1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject.

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fundamentals of the data subject that require the protection of personal data, particularly when the data subject is a child.

In relation to the delivery of the claimant's personal phone number to several individuals, SARARTE assumes in its writing that the legal basis for processing the email and personal phone number data of its employees for tasks related to their job position is the consent expressed by them through the form provided by the company during the hiring process. Furthermore, it acknowledges that, contrary to the company's protocols, in this case, the personal phone number was provided without prior consent, as the claimant did not sign the form provided by the aforementioned entity to collect such expression of will.

In any case, the consent collection form provided by SARARTE, even if it had been signed by the respondent granting consent for the two options presented, would not cover the use of their personal contact data for purposes related to the employment relationship, to the extent that the consents

collected through that form only refer to the transfer of data to public bodies, in accordance with labor, Social Security, and tax regulations, or to entities that provide services to SARARTE.

The requirements that grant validity to consent must be taken into account, according to the definition set forth in Article 4 of the GDPR:

"Article 4 Definitions

For the purposes of this Regulation, the following shall be understood as:

(...)

11. "consent of the data subject": any freely given, specific, informed, and unambiguous indication of the data subject's wishes, by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data concerning them."

In relation to the provision of consent, it must be taken into account what is established in Articles 7 of the GDPR and 6 of the LOPDGDD.

Article 7 "Conditions for consent" of the GDPR:

"1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data."

Article 6 "Processing based on the consent of the affected party" of the LOPDGDD:

"1. In accordance with the provisions of Article 4.11 of Regulation (EU) 2016/679, the consent of the affected party is understood as any freely given, specific, informed, and unambiguous indication of their wishes, by which they accept, either by a statement or by a clear affirmative action, the processing of personal data concerning them.

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2. When the processing of data is intended to be based on the consent of the data subject for multiple purposes, it must be specifically and unequivocally stated that such consent is granted for all of them.

3. The execution of the contract may not be conditioned on the data subject consenting to the processing of personal data for purposes that are not related to the maintenance, development, or control of the contractual relationship.

Consent is understood as a clear affirmative act that reflects a free, specific, informed, and unequivocal expression of will by the data subject to accept the processing of personal data concerning them, provided with sufficient guarantees to demonstrate that the data subject is aware of the fact that they are giving their consent and to what extent they are doing so. Consent must be given for all processing activities carried out for the same or similar purposes, so that when the processing has multiple purposes, consent must be given specifically and unequivocally for all of them, without the execution of the contract being conditioned on the data subject consenting to the processing of their personal data for purposes that are not related to the maintenance, development, or control of the contractual relationship. In this regard, the lawfulness of the processing requires that the data subject be informed about the purposes for which the data is intended (informed consent).

Consent must be given freely. Consent is considered not to be free when the data subject does not have a genuine or free choice or cannot refuse or withdraw their consent without suffering any detriment; or when they are not allowed to authorize separately the different operations of personal data processing even though it is appropriate in the specific case, or when the fulfillment of a contract or provision of service is dependent on consent, even when such consent is not necessary for that fulfillment. This occurs when consent is included as a non-negotiable part of the general conditions or when the obligation to agree to the use of personal data beyond what is strictly necessary is imposed.

In the employment context, this requirement is particularly relevant due to the different positions held by the employer and the employee, making it necessary to demonstrate that the employee's refusal to give consent will not result in any negative consequences for them, thereby ensuring their free provision of consent. Without these conditions, the provision of consent would not offer the data

subject true control over their personal data and its destination, rendering the processing activity illegal.

The European Data Protection Board analyzed these issues in its document "Guidelines 05/2020 on Consent under Regulation 2016/679," dated 04/05/2020. From what is indicated in this document, it is important to highlight some aspects related to the validity of consent, specifically regarding the elements "specific," "informed," and "unequivocal":

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"3.2. Specific Will Declaration

Article 6, paragraph 1, letter a), confirms that the consent of the data subject for the processing of their data must be given "for one or more specific purposes" and that a data subject can choose with respect to each of those purposes. The requirement that consent must be "specific" aims to ensure a level of control and transparency for the data subject. This requirement has not been modified by the GDPR and remains closely linked to the requirement for "informed" consent. At the same time, it must be interpreted in line with the requirement of "dissociation" to obtain "freely" given consent. In summary, to comply with the "specific" nature, the data controller must apply:

- i) the specification of the purpose as a safeguard against misuse,
- ii) dissociation in consent requests, and
- iii) a clear separation between the information related to obtaining consent for data processing activities and the information related to other matters.

(...)

3.3. Informed Will Declaration

The GDPR reinforces the requirement that consent must be informed. In accordance with Article 5 of the GDPR, the requirement for transparency is one of the fundamental principles, closely related to the principles of fairness and lawfulness. Providing information to data subjects before obtaining their consent is essential for them to make informed decisions, understand what they are authorizing, and, for example, exercise their right to withdraw consent. If the controller does not provide accessible information, user control will be illusory, and consent will not constitute a valid basis for data processing.

If the requirements for informed consent are not met, the consent will not be valid, and the controller may be in violation of Article 6 of the GDPR.

3.3.1. Minimum Content Requirements for Consent to be "Informed"

For consent to be informed, it is necessary to communicate to the data subject certain elements that are crucial for making a choice. Therefore, the GT29 believes that at least the following information is required to obtain valid consent:

- i) the identity of the data controller,
- ii) the purpose of each of the processing operations for which consent is requested,
- iii) what (type of) data will be collected and used,
- iv) the existence of the right to withdraw consent,
- v) information about the use of data for automated decision-making in accordance with Article 22, paragraph 2, letter c), when relevant, and
- vi) information about the potential risks of data transfer due to the absence of an adequacy decision and appropriate safeguards, as described in Article 46."

In the reported case, even if the complainant had given the consent that SARARTE collects from its employees through the designated form, as detailed above, such consent could not be considered valid for the processing of data subject to the complaint. This entity does not even properly inform about this data processing, its purpose, and legal basis or the right to withdraw consent, if applicable, in accordance with the provisions of Article 13 of the GDPR; nor has it established any mechanism for data subjects to provide explicit consent.

In this case, according to the indications in the file, such processing would have occurred without consent (or any other legal basis to support it), making it unlawful and constituting a violation of Article 6.1 of the GDPR.

On the other hand, regarding the use of the complainant's personal email as a recovery address for account ***EMAIL.1, it has not been established that the creation of that account was carried out by the company, nor is there evidence to suggest that it was, given that it is a Gmail account, which can be opened by any individual, and the company, for its part, has its own domain for its email accounts.

III

Classification and Qualification of the Violation

In accordance with the evidence currently available at the initiation of the sanctioning procedure, and without prejudice to the outcome of the investigation, it is considered that the known facts could constitute a violation attributable to SARARTE, classified under Article 83.5 a) of the GDPR, which stipulates the following:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; For the purposes of the statute of limitations for violations, the alleged violation prescribes after three years, in accordance with Article 72.1 a) of the LOPDGDD, which classifies the following conduct as very serious:

1. According to what is established in Article 83.5 of Regulation (EU) 2016/679, violations that constitute a substantial breach of the articles mentioned therein are considered very serious and will prescribe after three years, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

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Proposal for Sanction

This infringement may be sanctioned with a fine of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5 of the GDPR.

Article 83.2 of the GDPR establishes the circumstances to be considered for the imposition of such a sanction:

Article 83. General Conditions for the Imposition of Administrative Fines

(...)

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the data controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the data controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular

whether the data controller or processor notified the infringement and, if so, to what extent;
i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with those measures;
j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.

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In this case, the severity of the infringement (Article 83.2 a) of the GDPR) should be taken into account, to the extent that the transfer of the phone number without consent deprives the claimant of control over that personal data.

Likewise, the existence of negligence (Article 83.2 b) of the GDPR) in the infringement should be considered, in that SARARTE has failed to comply with its own protocol regarding the use of personal data of its employees only when it has been previously consented to.

Considering the individual circumstances of this case, the initial assessment of the fine for the infringement of Article 6.1 of the GDPR is SIX THOUSAND euros (6,000.00 euros).

V

Adoption of Measures

If the infringement is confirmed, it could be agreed to impose on the data controller the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the data controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified timeframe...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

In this case, such measures could consist of demonstrating, within three months, that the company's procedures regarding the use of employees' personal email and phone have been reviewed, ensuring that they are only used for tasks related to the employment relationship when valid consent has been given for such use, or that it has been decided to refrain from processing data similar to those that have prompted the actions.

It is noted that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which could lead to the initiation of further administrative sanctioning proceedings.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or correct the effects of the infringement committed and to demonstrate to this AEPD compliance with that obligation.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

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FIRST: TO INITIATE SANCTIONING PROCEDURE against SARARTE, S.L., with NIF B70223599, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO APPOINT A.A.A. as the instructor and B.B.B. as the secretary, indicating that they may

be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the claimant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of said regulation, an administrative fine of 6,000.00 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to SARARTE, S.L., with NIF B70223599, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 4,800.00 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 4,800.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to be applied, the amount of the sanction would be set at 3,600.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or administrative appeal against the sanction.

For these purposes, in case of opting for any of them, it must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction indicating which of the two reductions it is opting for or if it is for both.

In the event that it chooses to proceed with the voluntary payment of any of the amounts indicated above (4,800.00 euros or 3,600.00 euros), it must make the payment by depositing it into account no. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is adhering.

Likewise, it must send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any action or administrative appeal against the sanction to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, if no resolution has been issued and notified, it will expire, and consequently, the file of actions will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On December 11, 2024, SARARTE proceeded to pay the sanction in the amount of 3,600.00 euros, making use of the two reductions provided for in the initiation agreement transcribed above, which implies the acknowledgment of responsibility in relation to the facts referred to in the initiation agreement and its legal qualification.

THIRD: SARARTE has expressly renounced any action or administrative appeal against the sanction.

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FOURTH: In the previously transcribed initiation agreement, it was indicated that, if the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

Having recognized the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the infringer acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent body to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned on the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. The percentage of reduction provided in this section may be

increased by regulation.”

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making the voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at 3,600.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, SARARTE has proceeded to acknowledge responsibility and make the voluntary payment of the sanction, availing itself of the two reductions provided and expressly waiving any action or appeal in the administrative route.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total amount of 6,000.00 euros.

After SARARTE, S.L. has proceeded with the prompt payment and acknowledgment of responsibility, it is proceeded, by virtue of article 85 of the LPACAP, to reduce the total mentioned by 40%, which results in the definitive amount of 3,600.00 euros.

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SECOND: DECLARE the termination of procedure EXP202405912, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: ORDER SARARTE, S.L. to notify the Agency of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution, within a period of 3 months from the date this resolution becomes final and enforceable.

FOURTH: NOTIFY this resolution to SARARTE, S.L.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or administrative appeal by this authority, the express renunciation manifested by SARARTE, S.L. is accepted, thus precluding the filing of an optional appeal for reconsideration against this resolution, all without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, taking into account the provisions of Article 90 of the LPACAP, since no administrative appeal can be filed due to the express renunciation, this resolution will be final and fully enforceable from the date of its notification.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in

Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

1259-180225

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy

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